

Bill Spencer

From: Ryan Brown
Sent: Monday, April 29, 2019 11:48 AM
To: Bill Spencer
Cc: Jim Beaver; Jerome Delvin; Adam Fyall; David Sparks; Ken Spencer; Andy Miller; Loretta SmithKelty; Adam Morasch; Shon Small; Andy Miller
Subject: RE: PILT invoice for 2019 from Benton County WA.

Bill,

I agree that it would be best for us to sit down and discuss this matter instead of through emails. I am sorry if I offended you. I tried to gain some clarity by speaking to Ken as well as Adam. That didn't shed much light. That, combined with the fact that the bill was already sent, caused me to believe that I needed to let the Board know of the issues, and my practice is to put those sort of things in writing to the Board.

I agree that I conversation between you and I would have been good.

As Andy said in his email, I can make some time this afternoon if you'd like to do that.

Ryan

From: Bill Spencer
Sent: Monday, April 29, 2019 11:13 AM
To: Shon Small <Shon.Small@co.benton.wa.us>; Ryan Brown <Ryan.Brown@co.benton.wa.us>
Cc: Jim Beaver <Jim.Beaver@co.benton.wa.us>; Jerome Delvin <Jerome.Delvin@co.benton.wa.us>; Adam Fyall <Adam.Fyall@co.benton.wa.us>; David Sparks <David.Sparks@co.benton.wa.us>; Ken Spencer <Ken.Spencer@co.benton.wa.us>; Andy Miller <Andy.Miller@co.benton.wa.us>; Loretta SmithKelty <Loretta.SmithKelty@co.benton.wa.us>; Adam Morasch <Adam.Morasch@co.benton.wa.us>
Subject: Re: PILT invoice for 2019 from Benton County WA.

Mr. Brown and Mr. Miller,

Thank you for your questions and concerns. However, I feel the email was premature Yes I know Mr. Brown talked with Mr. Ken Spencer our treasurer and Adam Fyall About what is going on with the PILT bill. I have serious concerns about this course of action because Mr. Brown did not contact me the Assessor. As Mr. Brown stated he knows the PILT bill very well, because of his knowledge of PILT he should know that I am the person responsible for all of the methods and function of PILT. I am on my way to a meeting and can not write an appropriate response. I will do so by the end of the day. I would have rather talked with Mr Brown face to face or at least on the phone before Mr Brown's careless and irresponsible email was sent. The questions and concerns are valid, but could have been answered in a more appropriate forum.

For the future I am the duly elected County Assessor and questions or concerns should be directed to me. The current direction Mr Brown has decided to take is irresponsible and concerning as he has completely bypassed the office responsible. Again, a detailed email is to come unless those who are interested would like to sit down to understand what the situation is and had been.

Yes Shon...never a dull moment!

Regards

Bill Spencer
Benton County Assessor

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From: Shon Small

Sent: Monday, April 29, 2019 9:48:02 AM

To: Ryan Brown

Cc: Jim Beaver; Jerome Delvin; Bill Spencer; Adam Fyall; David Sparks; Ken Spencer; Andy Miller; Loretta SmithKelty

Subject: Re: PILT invoice for 2019 from Benton County WA.

Never a dull moment! Thanks Ryan

Sent from my iPhone

On Apr 26, 2019, at 09:07, Ryan Brown <Ryan.Brown@co.benton.wa.us> wrote:

*****CONFIDENTIAL ATTORNEY-CLIENT COMMUNICATION*****

Gentlemen,

I was surprised when I saw that this year's PILT bill that Ken sent out earlier this week was only for \$4M. According to Adam, it was \$9M last year. Given that the bill is based on an arithmetic formula for determining DOE's assessed value based on the average value within Benton County of certain categories of land and we haven't had any great drop in property values around here, I am puzzled how the value and tax bill can drop so substantially.

I am pretty familiar with both the terms and intent of our Settlement Agreement, as I negotiated and drafted it in 1996. Under our Settlement Agreement with DOE, all billings must be in accordance with the agreed upon appraisal methodology set forth in Attachment 1. Changes due to changes in levy rates, amount of property under DOE control and changes in assessed value of similar property in the County can be made with simple notice to DOE. If the facts underlying the appraisal and bill calculation are not consistent with Attachment 1 for any other reason, the County must re-apply for PILT (unless of course we were to agree to an amendment to the Settlement Agreement).

As no one has explained to me how the bill dropped so much, I cannot say if we have an issue or not. I am concerned, however, of two possibilities. The first is that one of the taxing districts becomes unhappy with the significantly lower PILT payment and asserts that the County has not complied with its duties under our MOU with the taxing districts.

The second is that DOE sees this lower bill and comes to the conclusion that perhaps it has been overbilled and has overpaid in years past.

Unfortunately, the bill has already gone out. So, I am not sure what you want to do at this point, but I thought it my duty to bring these concerns to your attention.

Ryan K. Brown

Chief Deputy Pros. Attorney, Civil
Benton Co. Pros. Attorney's Office
Phone: (509) 735-3591
Fax: (509) 222-3705

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From: Ken Spencer
Sent: Wednesday, April 24, 2019 2:32 PM
To: brian.vance@rl.doe.gog
Cc: debra.dove@rl.doe.gov; dragana.etheridge@rl.doe.gov; mark.coronado@rl.doe.gov; gregory.jones@rl.doe.gov; Bill Spencer <Bill.Spencer@co.benton.wa.us>; Ryan Brown <Ryan.Brown@co.benton.wa.us>; Shon Small <Shon.Small@co.benton.wa.us>; Jerome Delvin <Jerome.Delvin@co.benton.wa.us>; Jim Beaver <Jim.Beaver@co.benton.wa.us>
Subject: PILT invoice for 2019 from Benton County WA.

Mr. Brian Vance;

Please find attached the invoice for the PILT from Benton County WA and the other documents that were sent to you by mail today. If you have any questions please feel free to contact me at the Benton County Treasurer's office 509-735-8505 ext 5661

Thank you,

Ken Spencer
Benton County Treasurer

<2019 pilt invoice for hanford RL.doc>
<2019 Assessor Full Letter Certification.pdf>
<Kibe SD #52 Reply regarding P.L. 81-874.pdf>
<PSD#116 Reply regarding P.L. 81-874.pdf>
<RSD#400 email Reply regarding P.L. 81-874.pdf>